

22VECV02293 22VECV02293

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-06-25

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Case Number: 22VECV02293 Hearing Date: June 25, 2026 Dept: W

Hearing Date:

Thursday, June 25, 20256

Case Name:

Darra Hall v. The Hartford Life and Accident Insurance Company

Case No.:

22VECV02293

MOTION

Default Prove Up

Moving Party:

Defendants and Interpleader Plaintiffs Protective Life Insurance Company ("Protective") and West Coast Life Insurance Company

Responding Party:

None.

Notice:

Proof of Service on April 29, 2026.

Filings:

Request for Entry of Default Judgment – 4/30/26

Declaration of Charles Chineduh in Support – 4/30/26

Summary of the Case – 4/30/26

Proposed Judgment – 4/30/26

Holding:

The Court TENTATIVELY GRANTS Defendant's Request for Default Judgment.

Background:

This case is about the rightful beneficiary of two life insurance policies. The ownership of both of these policies has already been adjudicated. As a brief recap, on May 17, 2007, non-party Patsy Hall applied for a \$4,000,000 life insurance policy from Defendant West Coast Life Insurance Company. The policy was issued to the Patsy Hall Irrevocable Life Trust, who eventually transferred it to CSSEL GBT, a Credit Suisse subsidiary. CSSEL brought a motion for summary judgment as to the ownership of this policy. The Court ruled in favor of CSSEL on January 22, 2026.

Ownership of the second policy was the subject of a recent Motion for Summary Judgment. On December 13, 2007, non-party Patsy Hall applied for a second, \$2,500,000 life insurance policy from Protective Life Insurance Company. The original beneficiary of this policy was the Patsy Hall Irrevocable Life Trust. On September 19, 2012, the rights of this policy were transferred to PF Participation Funding Trust. On April 16, 2026, this Court granted PF Participation Funding Trust's Motion for Summary Judgment. Thus, the determination of the rightful beneficiaries of these policies has been fully adjudicated.

The instant default prove-up is brought by Moving Defendants/Interpleader Plaintiffs West Coast Life Ins. Co and Protective Life Insurance Company (herein, "Interpleader Plaintiffs"). Interpleader Plaintiffs are the insurers who sold the disputed policies and are responsible for paying out the proceeds of Patsy Hall's policies.

On May 6, 2025, Interpleader Plaintiffs filed both their Answer to the original lawsuit, and filed a Cross-Complaint against both Darra Hall, and every other Defendant in the case. Their Crossclaim brought only a single request – to deposit the disputed policy proceeds into the registry of the Court. Essentially, Interpleader Plaintiffs agree that these policies need to be paid out, but the dispute over who is the rightful recipient means they cannot disburse the funds. Moreover, Interpleader Plaintiffs have no stake in who wins this case. So rather than be dragged into this dispute, Interpleader Plaintiffs wish to deposit the money into an interest-bearing account that the Court can distribute from once the case resolves.

Christopher Hall, the trustee of the Patsy Hall Irrevocable Life Trust, never responded to this Cross-Complaint. Interpleader Plaintiffs submitted their initial request for entry of default judgment on July 14, 2025. Default was entered against Defendant Christopher Hall, but Interpleader Plaintiffs never moved forward.

On April 30, 2026, Interpleader Plaintiffs once again submitted a request for entry of default against Defendant Christopher Hall.

On May 1, 2026, Interpleader Plaintiffs failed to appear for their default prove-up hearing. The Court scheduled an OSC Re: Failure to Appear.

Now, the Court once again hears the default prove-up hearing, alongside an OSC Re: Failure to Appear.

Analysis:

CCP § 585 permits entry of a judgment after a Defendant has failed to timely answer after being properly served. A party seeking judgment on the default by the Court must file a Request for Court Judgment, and: (1) a brief summary of the case; (2) declarations or other admissible evidence in support of the judgment requested; (3) interest computations as necessary; (4) a memorandum of costs and disbursements; (5) a proposed form of judgment; (6) a dismissal of all parties against whom judgment is not sought; (7) a dismissal of all parties against whom judgment is not sought or an application for separate judgment under CCP § 579, supported by a showing of grounds for each judgment; (8) exhibits as necessary; and (9) a request for attorneys' fees if allowed by statute or by the agreement of the parties. (CRC Rule 3.1800.)¿

Use of JC Form CIV-100

Yes – see Request for Entry of Default Judgment.

¿

Dismissal or judgment of non-parties to the judgment

Yes – Through two recent MSJs, this Court has determined that CSSEL is the rightful beneficiary of the first life insurance policy, and that PF Participation Funding Trust is the rightful beneficiary of the second policy.

Declaration of non-military status for each defendant

Yes. See Charles Chineduh Declaration, Paragraph 9.

Summary of the case

Yes. See Summary of the Case, filed April 30, 2026.

585(d) declarations/admissible evidence in support

Yes. See Charles Chineduh Declaration.

Exhibits (as necessary)¿

No exhibits necessary.

Interest computation (as necessary)

No monetary award requested.

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Cost memorandum

No request for costs.

¿

Request for attorney fees (Local Rule 3.214)

No request for attorney fees.

¿

Proposed form of judgment

It is somewhat unclear what judgment Interpleader Plaintiffs seek, as their CIV-100 form does not include a request for either monetary or non-monetary relief. However, in the Declaration of Mr. Chineduh, Interpleader Plaintiffs do request, "default judgment in favor of Interpleader Plaintiffs and against Christopher Hall is proper with regard to the Interpleader Complaint." (Chineduh Decl. ¶ 10.)

Based on Interpleader Plaintiffs' original cross-complaint, they request the following relief:

First, that the disputed policy proceeds are deposited into an interest-bearing account with the Registry of the Court. (Cross-Complaint p. 8:10-12.)

Second, that the Court, "adjudicate the issue of which of the Interpleader Defendants are rightfully entitled to the Policies' Proceeds." (Id. p. 8:4-5.)

Third, that "the Court enter an order enjoining each of the Interpleader Defendants, their agents, attorneys, and/or assigns, from instituting or maintaining any action in any court or forum against the Interpleader Plaintiffs." (Id. p. 8:6-8.)

Fourth, "[t]hat an award be made to the Interpleader Plaintiffs out of the funds to be deposited into the Registry of the Court, as reimbursement for the costs, attorneys' fees, and other expenses the Interpleader Plaintiffs are compelled to expend in the prosecution of this lawsuit." (Id. p. 8:10-12.)

Fifth, that, "the Interpleader Plaintiffs be dismissed with prejudice from this action and discharged from any and all further liability with respect to, affecting, or in any way arising out of the Policies with an express finding of finality." (Id. p. 8:13-15.)

Given these requests, the Court believes it can grant partial relief.

First, the Court takes no issue with having the policy proceeds deposited into an interest-bearing account with the Registry of the Court.

Second, the Court has already determined the rightful beneficiaries in this case.

Third, because this motion is only brought with respect to Defendant Christopher Hall in his role as trustee, the Court could only enjoin Christopher Hall as trustee from bringing further suit.

Fourth, the Court cannot grant the request for costs and attorney fees, as Interpleader Plaintiffs provide no basis for their reasonable costs or fees. (See Request for Entry of Default; see also Chineduh Decl.)

Fifth, the Court can dismiss Plaintiffs from this case.

For these reasons, the Court TENTATIVELY GRANTS Defendant's Request for Default Judgment, as set forth herein.

Conclusion:

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